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| | | County of Plumas (2005) 133 Cal.App.4th 1, 20; DuPont Merck Pharmaceutical Co. v. Superior Court (2000) 78 Cal.App.4th 562, 566; Glendale Redevelopment Agency v. Parks (1993) 18 Cal.App.4th 1409, 1424; Westside Center Associates v. Safeway Stores 23, Inc. (1996) 42 Cal.App.4th 507, 529.)<br><br>Moving parties shall file the proposed First Amended Cross-Complaint within 10 days of the date of this order.<br><br>Moving parties to give notice. |
| **108** | Isaak-Shapiro vs. Irvine Hebrew Day School, 2026-01545143 | Demurrer to Complaint – OVERRULED IN PART AND SUSTAINED IN PART WITH LEAVE TO AMEND<br><br>Motion to Strike Portions Of Complaint – GRANTED WITH LEAVE TO AMEND<br><br><u>Demurrer</u><br><br>Defendant Irvine Hebrew Day School ("Defendant") demurs to all eight causes of action in Plaintiff Jerry Isaak-Shapiro's ("Plaintiff") Complaint.<br><br><u>First Cause of Action: Breach of Contract</u><br><br>"The essential elements of a claim of breach of contract, whether express or implied, are the contract, plaintiff's performance or excuse for nonperformance, defendant's breach, and the resulting damages to plaintiff." (San Mateo Union High School Dist. v. County of San Mateo (2013) 213 Cal.App.4th 418, 439.)<br><br>Defendant contends that the pleading does not set forth the actual contract language establishing that Defendant was obligated to employ Plaintiff for a guaranteed two-year period, nor does it attach the agreement or plead its material terms with sufficient clarity. Also, the pleading alleges that Plaintiff was terminated on May 6, 2024, before completing the first year of the alleged two-year term, yet does not allege facts showing the agreement actually restricted Defendant's ability to terminate employment prior to the end of that alleged term (Compl. ¶ 50). |

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| | | In opposition, Plaintiff contends that he has pled the Employment Agreement sufficiently according to its legal effect and that Defendant's contention that Plaintiff's Employment Agreement does not establish a binding two-year term is a dispute over the interpretation of contract, not the sufficiency of the pleadings.<br><br>"[A] plaintiff may plead the legal effect of the contract rather than its precise language." (Miles v. Deutsche Bank National Trust Co. (2015) 236 Cal.App.4th 394, 402 (citing Construction Protective Services, Inc. v. TIG Specialty Ins. Co. (2002) 29 Cal.4th 189, 199.).) Thus, a plaintiff's failure either to attach or to set out verbatim the terms of the contract was not fatal to his breach of contract cause of action. (Ibid.)<br><br>Here, Plaintiff has sufficiently pled that terms of the agreement by its legal effect. Specifically, "[i]n or around June 2023, IHDS offered Plaintiff employment as Interim Head of School for a two-year term, and Plaintiff accepted IHDS's offer by entering into a written Employment Agreement. The Employment Agreement set forth Plaintiff's compensation, including an annual base salary of $265,000, and further stated that 'Employee and Employer may negotiate an increased compensation in the 2nd Year of the contract,' confirming that the parties agreed to a two-year employment term." (Compl. ¶ 48.)<br><br>Whether Plaintiff's interpretation of the agreement that it was for a two-year term is not an issue to be resolved by way of demurrer. (See, e.g., Aragon-Haas v. Family Security Ins. Services, Inc. (1991) 231 Cal.App.3d 232, 239 (citing Marina Tenants Assn. v. Deauville Marina Development Co. (1986) 181 Cal.App.3d 122, 128) ("[W]here an ambiguous contract is the basis of an action, it is proper, if not essential, for a plaintiff to allege its own construction of the agreement. So long as the pleading does not place a clearly erroneous construction upon the provisions of the contract, in passing upon the sufficiency of the complaint, we must |

accept as correct plaintiff's allegations as to the meaning of the agreement.”).)

Accordingly, the demurrer to the first cause of action is OVERRULED.

Second Cause of Action: Breach of Implied Contract

“As to the basic elements [of a contract cause of action], there is no difference between an express and implied contract. . . . While an implied in fact contract may be inferred from the conduct, situation or mutual relation of the parties, the very heart of this kind of agreement is an intent to promise.” (Division of Labor
98 Law Enforcement v. Transpacific Transportation Co. (1977) 69 Cal.App.3d 268, 275; see also Friedman v. Friedman (1993) 20 Cal.App.4th 876, 888.)

Defendant contends that Plaintiff’s second cause of action fails because an implied-in-fact contract cannot coexist with an express written contract covering the same subject matter. Per Defendnt, pleading both an express contract and an implied contract covering the same subject matter requires Plaintiff to plead inconsistent factual allegations, which is impermissible. (Manti v. Gunari (1970) 5 Cal.App.3d 442, 449.) Defendant also contends that the cause of action is uncertain, in that it alleges that “Plaintiff was employed by Defendants under an agreement that was partly written and partly implied through Defendants’ representations, promises, and conduct,” yet does not specify what part was implied versus written. (See Compl. ¶ 55.)

Defendant’s arguments are not persuasive. The facts alleged are not inconsistent. It appears that Plaintiff is alleging as one theory, an express written agreement for employment for a two year term and that, in the alternative, if the written agreement is not construed as having a two year term, then Plaintiff alleges that the parties’ conduct created an implied-in-fact contract.

Further, the pleading is not uncertain. Plaintiff clearly pleads that “Defendants made representations and assurances to Plaintiff that he would serve as IHDS's Interim Head of School for a two-year term, subject to negotiation of second-year compensation" and that "Plaintiff repeatedly stated that he had accepted the Interim Head of School position as a two-year term." (Compl. ¶¶ 56, 58.)

Accordingly, the demurrer to the second cause of action is OVERRULED.

<u>Third Cause of Action: Breach of Implied Covenant of Good Faith and Fair Dealing</u>

Defendant contends that Plaintiff's third cause of action for breach of the implied covenant of good faith and fair dealing is duplicative of the breach of contract cause of action because it is based on the same facts, conduct, and damages as alleged in the breach of contract cause of action.

"The covenant of good faith and fair dealing, implied by law in every contract, exists merely to prevent one contracting party from unfairly frustrating the other party's right to receive the benefits of the agreement actually made." (Durell v. Sharp Healthcare (2010) 183 Cal.App.4th 1350, 1369).

"A 'breach of the implied covenant of good faith and fair dealing involves something beyond breach of the contractual duty itself'…." (Careau & Co. v. Security Pacific Business Credit, Inc. (1990) 222 Cal.App.3d 1371, 1394 (Careau).) "If the allegations do not go beyond the statement of a mere contract breach and, relying on the same alleged acts, simply seek the same damages or other relief already claimed in a companion contract cause of action, they may be disregarded as superfluous as no additional claim is actually stated. Thus, absent those limited cases where a breach of consensual contract term is not claimed or alleged, the only justification for asserting a separate cause of action for breach of the implied covenant is to obtain a tort recovery." (Id. at p. 1395; see also Levy v. Only Cremations for Pets, Inc. (2020) 57 Cal.App.5th 203, 215 [sustaining a demurrer on this basis.])

However, "a tort remedy for a breach of the implied covenant in a noninsurance contract has little authoritative support." (Careau, supra, 222 Cal.App.3d at p. 1399.) While an exception appears to exist for "noninsurance special relationships," "every case which has considered the issue has rejected the recognition of a special relationship between specific contracting parties." (Ibid.)

Here, the Complaint alleges that "Defendants breached the implied covenant of good faith and fair dealing by failing to cooperate honestly and fairly with Plaintiff in the performance of said contract." (Compl. ¶ 64.) However, Plaintiff has not pled any specific acts, other than those that also form the basis for the breach of contract cause of action, regarding Defendant's alleged failure to cooperate. Further, while Plaintiff alleges tort based damages, Plaintiff has not pled a special relationship between the parties.

Accordingly, the demurrer to the third cause of action is SUSTAINED with leave to amend.

<u>Fourth Cause of Action: Promissory Estoppel</u>

The elements of a promissory estoppel claim are (1) a promise clear and unambiguous in its terms; (2) reliance by the party to whom the promise is made; (3) the reliance must be both reasonable and foreseeable; and (4) the party asserting the estoppel must be injured by his reliance. (Wells Fargo Bank, Na. v. FSI, Financial Solutions, Inc. (2011) 196 Cal.App.4th 1559, 1573.)

Defendant contends that promissory estoppel is not available where an enforceable contract exists; that Plaintiff does not allege the contract is invalid or unenforceable and does not clearly plead in the alternative; and Plaintiff cannot rely on inconsistent factual theories to sustain multiple claims. The only authority cited by Defendant in support of these propositions is Cantu v. Resolution Trust Corp. (Cantu v. Resolution Trust Corp. (1992) 4 Cal.App.4th 857, 877–878.) However, Cantu was concerned with the sham

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| | | pleading doctrine, under which a plaintiff is prohibited from pleading facts or positions in an amended complaint that contradict the facts pleaded in the original complaint or by suppressing facts which prove the pleaded facts false. (Id. at 877.)<br><br>Plaintiff's pleading of a promissory estoppel claim in addition to breach of contract amounts to an assertion of an alternative theory of liability, which is permissible. (See Mendoza v. Continental Sales Co. (2006) 140 Cal.App.4th 1395, 1402 ("When a pleader is in doubt about what actually occurred or what can be established by the evidence, the modern practice allows that party to plead in the alternative and make inconsistent allegations.").)<br><br>Accordingly, the demurrer to the fourth cause of action is OVERRULED.<br><br><u>Fifth Cause of Action: Whistleblower Retaliation Pursuant to Labor Code §1102.5</u><br><br>Pursuant to Labor Code section 1102.5, an employer "shall not retaliate against an employee for disclosing information…to a government or law enforcement agency, to a person with authority over the employee or another employee who has the authority to investigate…if the employee has reasonable cause to believe that the information discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation…" (Lab. Code, § 1102.5, subd. (b).)<br><br>"[T]he protections of section 1102.5(b) apply only where the disclosing employee 'has reasonable cause to believe that the information discloses a [legal] violation." (Contreras v. Green Thumb Produce, Inc. (2025) 116 Cal.App.5th 1251, 1259-1260.) "Accordingly, 'the relevant inquiry is not whether the conduct 'actually violated' any specific statute or regulation, but whether the plaintiff 'reasonably believed that there was a violation.'" (Ibid.) |

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| | | Defendant contends this cause of action is uncertain because the Complaint does not identify the specific law, rule, or regulation allegedly violated, the timing of the alleged disclosures in relation to the termination, the identities of the specific persons who made the termination decision, or facts showing that the decisionmakers acted because of the alleged disclosures rather than for some other reason.<br><br>The Complaint is not uncertain, and it sufficiently pleads all necessary elements. As stated above, it is not necessary to identify the specific law, rule or regulation allegedly violated, as the inquiry is only whether plaintiff had reasonable cause to believe that the information disclosed constituted a legal violation. Plaintiff alleges he notified the Board of Trustees of his discovery that approximately $350,000 had been transferred from Defendant's account to a personal Merrill Lynch account associated with Andrew Elster (Defendant's founder and trustee, who also held himself out as Defendant's Chief Financial Officer). (Compl. ¶¶28, 32-36.) Plaintiff alleges that the transfer appeared unusual unorthodox, and abnormal, and that it lacked the type of documentation and approval Plaintiff would expect for a legitimate school transaction; Plaintiff asked the Board to investigate what he characterizes as a possibly unlawful transfer. (Compl. ¶¶36-37.)<br><br>The Complaint further alleges that "Defendant retaliated against Plaintiff for opposing what Plaintiff reasonably believed to be unlawful financial practices by terminating Plaintiff's employment on or about May 6, 2024, after Plaintiff reported the unauthorized transfer and declined to sign the letter mischaracterizing prior contributions." (Compl. ¶ 80.)<br><br>The above allegations are sufficient at the pleading stage to state a claim for whistleblower retaliation. Defendant has presented no authority indicating that the decisionmakers who authorized the allegedly retaliatory action (in this case, termination) must be identified. |

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| | | Accordingly the demurrer to the fifth cause of action is OVERRULED.<br><br><u>Sixth Cause of Action: Wrongful Termination in Violation of Public Policy</u><br><br>"The elements of a claim for wrongful discharge in violation of public policy are (1) an employer-employee relationship, (2) the employer terminated the plaintiff's employment, (3) the termination was substantially motivated by a violation of public policy, and (4) the discharge caused the plaintiff harm." (Garcia-Brower v. Premier Automotive Imports of CA, LLC (2020) 55 Cal.App.5th 961, 973.)<br><br>Defendant contends that Plaintiff's pleading of a broad list of statutes and constitutional provisions, without tying them to concrete factual allegations, renders the claim ambiguous and unintelligible. In opposition, Plaintiff contends that Plaintiff's termination violated the public policy embodied in Labor Code section 1102.5. However, no such allegations are pled in the cited paragraphs.<br><br>Accordingly, the demurrer to the sixth cause of action is SUSTAINED with leave to amend.<br><br><u>Seventh Cause of Action: Intentional Infliction of Emotional Distress</u><br><br>The elements of a cause of action for intentional infliction of emotional distress are: (1) outrageous conduct by the Defendant; (2) intention to cause or reckless disregard of the probability of causing emotional distress; (3) severe emotional suffering and; (4) actual and proximate causation of the emotional distress. (Wong v. Tai Jing (2010) 189 Cal.App.4th 1354, 1376.) To be sufficiently outrageous to support a claim for intentional infliction of emotional distress, conduct must be so extreme as to exceed all bounds of that usually tolerated in a civilized community. (Wilson v. Hynek (2012) 207 Cal.App.4th 999, 1009.) |

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| | | Whether allegations in a Complaint rise to the level of extreme and outrageous is a determination that can be made as a matter of law. (See Cochran v. Cochran (1998) 65 Cal.App.4th 488, 494. ["the appellate courts have affirmed orders which sustained demurrers on the ground that the Defendant's alleged conduct was not sufficiently outrageous."]; See also Trerice v. Blue Cross of California (1989) 209 Cal.App.3d 878, 883 ["While the outrageousness of a defendant's conduct normally presents an issue of fact to be determined by the trier of fact…the court may determine in the first instance, whether the defendant's conduct may reasonably be regarded as so extreme and outrageous as to permit recovery"]).<br><br>However, "[w]here reasonable men may differ, it is for the jury, subject to the control of the court, to determine whether, in the particular case, the conduct has been sufficiently extreme and outrageous to result in liability." (Alcorn v. Anbro Engineering, Inc. (1970) 2 Cal.3d 493, 499.)<br><br>Here, Defendant contends that Plaintiff has not sufficiently pled any extreme and outrageous conduct, as the factual allegations constitute mere workplace disagreements followed by a termination of employment; nor has Plaintiff has alleged facts demonstrating severe emotional distress caused by such conduct.<br><br>In opposition, Plaintiff contends that the facts pled are sufficient to submit to a trier of fact. Plaintiff points to the additional allegations that he was induced by Defendant to reject another job offer in order to accept this position, he relocated from out of state, and he was pressured to participate in or acquiesce to conduct he reasonably believed was improper before ultimately being terminated. (Compl. ¶¶ 14-44.)<br><br>These allegations, without more, are not "so extreme as to exceed all bounds of that usually tolerated in a civilized community."<br><br>Accordingly, the demurrer to the seventh cause of action is SUSTAINED with leave to amend. |

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| | | Eighth Cause of Action: Failure to Pay Wages Due Upon Separation<br>After the demurrer was filed, Plaintiff dismissed this cause of action. The demurrer is therefore MOOT as to this cause of action.<br><br>Motion to Strike<br><br>Defendant Irvine Hebrew Day School ("Defendant") moves to strike various damages allegations from Plaintiff Jerry Isaak-Shapiro's ("Plaintiff") Complaint.<br><br>Punitive damages allegations<br><br>Defendant contends that Plaintiff's punitive damages allegations in Pars. 93 and 96 and Prayer Par. 5 are improper because punitive damages are not recoverable for breach of contract or wage-based claims. Also Plaintiff fails to allege specific facts showing malice, oppression, or fraud.<br><br>Paragraph 93 is part of the charging allegations for the seventh cause of action for intentional infliction of emotional distress. Paragraph 96 is part of the charging allegations for the eighth cause of action for failure to pay wages due upon separation, which has been dismissed.<br><br>In opposition, Plaintiff contends that punitive damages are authorized in connection with claims for whistleblower retaliation pursuant to Labor Code section 1102.5, wrongful termination in violation of public policy and intentional infliction of emotional distress.<br><br>The motion to strike as to punitive damages is GRANTED with leave to amend, to the extent it is not mooted by the concurrent ruling on the demurrer and dismissal of the eighth cause of action, as Plaintiff has not pled sufficient facts in the remaining causes of action to support punitive damages. |

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| | | Requests for injunctive relief, declaratory relief, accounting, restitution, and disgorgement<br><br>Defendant contends that Plaintiff has not pled factual or legal bases for any of the above forms of equitable relief set forth in the Prayer at Pars. 6, 9, 10, and 14 through 16, and the prayer is not tethered to any viable claim.<br><br>The motion is GRANTED with leave to amend, as the requested relief is not tethered to any particular causes of action, and therefore the Court cannot determine whether the relief is properly requested.<br><br>Request for attorney's fees under Government Code sections 12965 and 8547.10 and Code of Civil Procedure section 1021.5<br><br>Defendant asks the Court to strike the request for attorney's fees under Government Code sections 12965 and 8547.10 and Code of Civil Procedure section 1021.5, in the Prayer at Par. 8.<br><br>In opposition, Plaintiff concedes that none of the cited statutes are applicable to this case. Plaintiff contends that an attorney's fee award is proper under Labor Code §1102.5(j), in connection with a whistleblower retaliation claim, but the prayer does not cite to this statute. However, the argument is moot in light of the ruling on the demurrer.<br><br>The motion is GRANTED as to attorney's fees with leave to amend.<br><br>Request for relief under Labor Code section 226(a)<br><br>Defendant also moves to strike the request for relief under Labor Code section 226(a) in Prayer Par. 13. As Plaintiff has dismissed the eighth cause of action which is the only cause of action which would support an award under Section 226(a), the motion is GRANTED.<br><br>Plaintiff shall have 20 days leave to file an amended complaint. |

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| | | Plaintiff to give notice. |
| **109** | Kim vs. Kim, 2021-01183125 | Motion to Appear Pro Hac Vice – GRANTED<br>The unopposed application of attorney Benjamin C. Sassé to appear pro hac vice for Defendants Anna Kim, Kyong Su Kim, and Myong Kil Kim is GRANTED. |
| **110** | Pierce vs. County of Orange, 2025-01493461 | Demurrer to Amended Complaint – NO TENTATIVE<br><br>The Court requests that counsel be prepared to address the following questions:<br><br>1. Can applicability of trail immunity be determined as a matter of law? If so, what establishes as a matter of law that the roadway on which Plaintiff was riding his bicycle is a trail under CCP 831.4?<br>2. With respect to the O'Neill Regional Park map attached to the Declaration of Claire Damon as Exhibit C, is it proper for the Court to consider this map on a demurrer?<br>3. If the Court may consider the map, does trail immunity apply to Paved Roads, including parking areas? |
| **111** | Red Hill Village LLC vs. Shere, 2024-01424721 | Motion for Attorney Fees – CONTINUED<br><br>Plaintiff, Red Hill Village, LLC moves for an order granting attorney fees in the amount of $35,349.50. The Motion for Attorneys' Fees is CONTINUED to August 24, 2026 at 9:00 a.m. in Department N14.<br><br>The reply papers indicate that Defendant Kaiser Shere filed evidentiary objections as part of Defendant's opposition to the motion. However, no evidentiary objections appear in the Court's file.<br><br>Defendant is ORDERED to file the evidentiary objections within five (5) days. |